

Cross Defendant Safety Kleen Inc. shall prepare and submit a form of order consistent with this ruling within two weeks.

6-7. 26CV00449 Layman, Zeke v. Autumn Creek Post Acute et al

EVENT: (1) Demurrer to Second Amended Petition for Alternative Writ of Mandate and Damages

(2) Petition for Alternative Writ of Mandate (Continued)

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Petitioner Lacks Standing and a Beneficial Interest

What is required to obtain writ relief is a showing by a petitioner of (1) A clear, present and usually ministerial duty on the part of the respondent ... ; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty(*Mission Hospital Regional Medical Center v. Shewry* (2008) 168 Cal.App.4th 460, 478) [Emphasis Added] Under both State and Federal regulations cited in the Petition, it is the patient who is entitled to the benefits of the regulations. Here, Petitioner is not the patient. Nor is the Petitioner requesting relief on the patient's behalf. Consequently, Petitioner lacks standing.

In light of this ruling, the Court declines addressing the other grounds raised in the demurrer. The petition is dismissed with prejudice. Respondent shall prepare and submit a form of order within two weeks.

8. 26CV00885 Russo, Joel Benjamin v. Hellon, Aaron

EVENT: Defendant's Petition to Compel Arbitration

Preliminarily, Defendant's timeliness objection to the opposition is noted, however, the Court will rule on the merits.

On the issue of whether an arbitration agreement exists, the Court finds Defendant has met its burden demonstrating an existence of an agreement based on the April 3, 2018 and July 2019 documents.